

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday September 8, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM

LINE 1

24-CIV-04478 JANA GARCIA VS LAKEVIEW LODGE, INC.

JANA GARCIA
LAKEVIEW LODGE, INC.

ARLO G. URIARTE
ELENO NUNEZ GONZALEZ

MOTION FOR APPROVAL OF PAGA REPRESENTATIVE ACTION SETTLEMENT

TENTATIVE RULING:

The court DENIES without prejudice plaintiff Jana Garcia's motion for approval of PAGA (Private Attorney General Act) settlement.

This is an individual action to recover penalties for wage and hour violations which includes a claim for penalties pursuant to PAGA. (Complaint, filed July 22, 2024, ¶¶ 2, 52-57.)

According to the motion, it is estimated that there are approximately 20 aggrieved employees who worked 941 pay periods. The proposed settlement amount is \$220,000. It is proposed that the settlement will provide a payment of \$97,957.91 to the California Labor and Workforce Development Agency (LWDA) (i.e., 75% of the \$130,610.55 Net Settlement Amount). The remaining \$32,652.64 shall be distributed amongst the aggrieved employees.

In ruling on PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 [“trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.”]; see *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [“ ‘The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.’ ”]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

Threshold Issues

While plaintiff states she will provide the settlement agreement to the LWDA, there is no proof of service in the file showing such service and the LWDA website shows no filing. The LWDA website also does not show that the complaint was submitted. Thus, plaintiff has not met the threshold requirements for approval. (Lab. Code, §§ 2699, subd. (s)(1), (s)(2).)

Further, there is no proposed notice to the class submitted. The court needs to review and approve the notice.

Potential Conflict Between Plaintiff and the Aggrieved Employees

On its face, there appears to be a conflict between the plaintiff, who settled her individual case for \$40,000, a little less than a quarter of the settlement for the other aggrieved employees. There likely are good reasons for plaintiff receiving substantially more than the other aggrieved employees who are recovering penalties and not compensation, but the motion provides no details to explain the disparity in settlements and the court may not make assumptions unsupported by the record. The only mention of the plaintiff's individual settlement is in footnote 1 on page 1 of the motion and paragraph 4 of the Declaration of Arlo Garcia Uriate. There are no details about when, why and how this settlement was reached. The only detail is that the settlement was for \$40,000. While there is some mention of a change of policy by defendant, which may account for a reason that plaintiff has higher damages than other aggrieved employees, there is no breakdown of the number of employees who worked from June 2023 (the beginning of the PAGA period) to June 2024, when changes were made. No explanation is provided about any unique claims that plaintiff had (and there are no such allegations in the complaint). In a PAGA lawsuit, the plaintiff does not just represent her individual claims but is a proxy of the State and the State is the real party in interest. (*Turrieta v. Lyft, Inc.*, *supra*, 16 Cal.5th at p. 682.) Based upon plaintiff's individual settlement, the court must question whether the PAGA settlement is fair and reasonable to the aggrieved employees and whether plaintiff and her counsel represented the interests of the State or plaintiff's own individual interests. The court assumes that further facts will explain and thus refute the court's concerns, but based upon the record presented here, the court cannot determine that the PAGA settlement is fair, reasonable, and adequate. These concerns carry-over to the cross-check on the attorneys' fees. For example, the pre-litigation investigation, without further explanation, appears to relate to plaintiff's individual claim since it was only at the informal document exchange that it appears that plaintiff's counsel obtained documents about other aggrieved employees. The court also notes that the motion does not provide any information about the reasonableness of the hourly rate for cases litigated in San Mateo County (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 and it appears to the court that work performed by Uriate could have been performed by attorneys with less experience and have a lower hourly rate.

The court sets a case management conference for April 20, 2027 at 9:30 a.m. in Department 4 with a joint statement due five court days before the conference.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 2

24-CIV-07133

GRACE COLLEEN DODD, ET AL. VS. THE ENSIGN GROUP, INC., ET AL.

GRACE COLLEEN DODD
THE ENSIGN GROUP, INC.

LESLEY ANN CLEMENT
JOHN L SUPPLE

PLAINTIFFS' MOTION TO COMPEL DEPOSITION OF DEFENDANT THE ENSIGN GROUP, INC.'S PERSON MOST QUALIFIED RE: CHANGE OF OWNERSHIP, PRODUCTION OF DOCUMENTS; AND REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

Plaintiff Grace Colleen Dodd's motion for an order compelling Defendant The Ensign Group, Inc. (Ensign Group) to produce within 30 days its Person Most Qualified regarding Change of Ownership for deposition, pursuant to Plaintiffs' deposition notice, served on November 4, 2025, and to produce for inspection and copying all documents described in the deposition notice, under Code of Civil Procedure sections 2025.410, subdivisions (a), (b), and 2025.450(a), is GRANTED IN PART.

Defendants' objections to the declaration of Christopher Cherney are OVERRULED.

A. Background

The underlying action regards plaintiff's approximately two-month stay at defendants' care and treatment facility for rehabilitation following surgery for a broken right hip in the fall and winter of 2023. After undergoing subsequent surgeries following injuries sustained at defendants' facility, plaintiff passed away on May 26, 2024. (Comp. ¶¶70-79.)

Yet, plaintiff's theory of the case as shown by the allegations in the complaint and through this motion, including the declaration of Christopher Cherney appended to the Supplemental Declaration of Plaintiffs' Counsel Laraclay Parker filed August 28, 2026, is not simply that the defendants were negligent but that Ensign Group, as part of a corporate strategy, purchases nursing homes after conducting a financial analysis and then as they inform their investors achieve significant improvement quickly on key financial performance. (Comp. ¶ 25.)

The instant motion seeks an order compelling defendant Ensign Group (1) produce all responsive documents to the Requests detailed in the Notice of Motion and Separate Statement, (2) produce an appropriately qualified corporate representative for deposition within 30 days, and (3) issue monetary sanctions against Ensign in the amount of \$4,860 for plaintiffs' fees and costs in bringing this motion.

Defendant opposes the motion, contending that the subject matters and document requests in the PMQ Deposition seek information that is neither relevant nor reasonably calculated to lead to the

discovery of admissible evidence because the underlying action is about the care and treatment decedent Plaintiff Dodd received at Pacifica from September 7, 2023 to November 27, 2023 – not about the decision to acquire Pacifica’s operations about seven months earlier, in February 2023. In contrast, the PMQ deposition seeks testimony from TEG on a vast array of subject matters related to the pre-acquisition internal financial analysis (what Defendants believe Plaintiffs are referencing as the “pro forma”) utilized to assess and strategize relative to the business decision of acquiring the operations of Pacifica. Plaintiffs also request the production of voluminous categories of documents related to those subject matters. Moreover, plaintiffs’ PMQ Deposition Notice, in its entirety, seeks testimony and documents on subject matters that significantly intrude upon defendants’ confidential and proprietary trade secrets, including some information that is subject to a confidentiality agreement with a third party, the disclosure of which would substantially compromise defendants’ market advantage.

B. Legal Standard

“[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery.” (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superceded by statute].) “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

With respect to taking the deposition of a person most qualified, “[a]ny party may obtain discovery within the scope delimited by Chapter 2 ..., by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency.” (Code Civ. Proc. § 2025.010.)

The California Constitution expressly grants Californians a right to privacy. (Cal. Const., art. I, § 1.) “Protection of informational privacy is the provision’s central concern.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (*Williams*).) There is a legally recognized privacy interest in a person’s financial affairs. (*Fortunato v. Super. Ct.* (2003) 114 Cal.App.4th 475, 480; *Valley Bank of Nevada v. Super. Ct* (1975) 15 Cal.3d 652, 656-657 (*Valley Bank*).) The right of privacy, however, is not absolute (*Valley Bank, supra*, at p. 657.) The court must balance the right of privacy against the need for discovery. (*Williams, supra* at p. 552.) In general, the Supreme Court has established the following framework for evaluating potential invasions of privacy: the party asserting the privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy given the circumstances, and a threatened intrusion that is serious. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35.) The party seeking

information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives, or protective measures. A court must then balance these competing considerations. (*Id.* at pp. 37-40.)

When a discovery request implicates the constitutional right to privacy, the party seeking discovery of the private matter must do more than satisfy the relevance standard of Code of Civil Procedure section 2017.010. (*Williams, supra*, 3 Cal.5th at p. 556.) The more sensitive the nature of the personal information that is sought to be discovered, the more substantial the showing of the need for the discovery that will be required before disclosure will be permitted. While entities have rights, their rights are more limited than individuals. (*Roberts v. Gulf Oil Corp.* (1983) 147 Cal.App.3d 770, 797.)

C. Discussion

PMQ Deposition

In the PMQ deposition at bar, Plaintiffs seek testimony from TEG on the following subject matters:

2. All terms of the lease of the land and structures from which Pacifica operates;
 3. All information and documents that were considered or exchanged prior to purchasing the facility;
 4. The circumstances by which TEG became aware that Pacifica was available for purchase;
 5. Whether there was any bid process for the purchase of Pacifica;
 6. The existence of any data rooms regarding a potential purchase of Pacifica or the setting of rent;
 7. The due diligence process for the purchase of Pacifica;
 8. The setting of rent for Pacifica from January 1, 2022 to present;
 9. All pro forms, models, or budgets utilized or created prior to or during the purchase of Pacifica, including all drafts;
 10. All historical data considered, reviewed, or obtained prior to or during the purchase of Pacifica;
 12. Any and all contracts, agreements, memorandums of understanding, and/or side letters memorializing any obligations between and among TEG and the lessor of Pacifica;
 13. Any agreements which subordinate TEG's interests or the other Defendants' interests to anyone else;
 14. Any agreements regarding the transfer of ownership of Pacifica;
 15. Any assumptions that were used in the setting of rent, the fixing of the purchase price, or the budgeting for Pacifica;
 16. Any method used to monitor whether Pacifica performed consistent with any assumptions, whether contained in a pro forma, model, budget, or otherwise;
 17. TEG's obligations under any and all purchase or lease agreements and any addendums, side letters, and/or memorandums of understanding thereto regarding Pacifica;
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21. Whether Pacifica is collateralized, scheduled, identified, or otherwise listed in any debt instruments.

Ensign Group argues that this PMQ deposition and related production of documents is an “unfounded and intrusive fishing expedition for information” because this case is about the care and treatment Ms. Dodd received at Pacifica from September 7, 2023 to November 27, 2023 – not about the decision to acquire Pacifica’s operations. (Opp. p.7-8.) However, the Court’s review of the second and third paragraphs in the complaint demonstrates a clear nexus between allegations of substandard care and profit-driven business decisions:

“Ensign’s investment-oriented and profit maximizing operational policies and practices required Pacifica and other facilities to minimize staffing and labor costs, making it often impossible to find two available staff to assist a single resident. As a result, Ms. Dodd rarely received the assistance she needed to keep her safe when she was transferred to or from her bed, wheelchair, or commode, and in her 81 days at Pacifica, Ms. Dodd suffered at least eight falls and developed pressure injuries to her buttocks/sacrum and left heel.” (Comp. ¶¶ 2&3.) An x-ray taken shortly after her discharge on November 27, 2023 revealed she had broken her other hip. (Comp. ¶ 3.)

The motion to compel provides evidence of this corporate policy and the Declaration of Cherney provides supporting evidence of the due diligence that occurs for a potential acquisition of a nursing home, which supports the requests..

Applying the framework established by the Supreme Court, the court after assessing plaintiff’s theory of the case finds information about the topics discoverable. While Ensign Group’s evidence of trade secrets and financial privacy is conclusory, the court acknowledges that these types of documents are usually considered private and thus the Court finds that, for this motion, Ensign Group has established the minimum necessary to show a legally protected privacy interest, an objectively reasonable expectation of privacy given the circumstances, and a threatened intrusion that is serious. Plaintiffs though have met their burden to show the legitimate and important countervailing interests disclosure serves. The corporate documents, in addition, to the public documents they have already obtained, are necessary for Plaintiffs to obtain facts, which they hope will demonstrate a corporate structure more concerned about profits than patient care. These facts, if proven, would show fraud, oppression and/or malice to justify punitive damages, and also knowing and intentional acts. Ensign Group points to publicly available information as the only alternative, but the court finds that plaintiffs are also entitled to the testimony of the PMQ deposition. In balancing these competing considerations, the court finds that the plaintiffs’ right to this information substantially outweighs the Ensign Group’s right to privacy. The testimony is directly relevant to key issues in the case.

Accordingly, plaintiffs’ motion to compel the PMQ deposition is GRANTED. However, thirty days from notice of entry of order for the deposition to occur may not be sufficient time for all documents to be produced to allow for a meaningful deposition. The parties are to meet-and-confer regarding a realistic date for the deposition, no longer than thirty days after the documents are produced absent an agreement by the parties for a different date.

Request for Production of Documents

Plaintiffs also request the production of 34 categories of documents related to these subject matters. The court notes that plaintiffs agreed to withdraw subject matters 1, 11, 18, 19, 20 and document requests 9, 14, 15, 22, 24, 30, and 31 after post IDC meet and confer conversations. (Opp. p.5, fn. 2; Finn Decl. iso Opp. Ex. 8.)

Here, Defendant Ensign has refused to produce a single document. However, the court agrees the request for production of documents including information regarding twenty plus facilities is overly broad and limits the production to documents relating to the pre-acquisition internal analysis, and materials and information related to the diligence and underwriting processes with respect to the acquisition of Pacifica only. Accordingly, plaintiffs' motion to compel the deposition of the PMQ and production of documents is GRANTED IN PART. Ensign Group shall produce the documents on a rolling basis and, absent good cause, produce all responsive documents within sixty days from the notice of entry of order.

D. Sanctions

Sanctions are mandatory against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response unless other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2023.010, 2023.030, subd. (a), 2025.450 subdivision (g)(1), and 2025.480 subdivision(j).) The court finds that the imposition of sanctions would be unjust in this case. The parties have had meaningful meet-and-confer, including informal discovery conferences with the commissioner. For requests for financial information and "trade secrets," it is hard to fault a party from resisting production and having a court order production. Therefore for this motion, the court awards no sanctions.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 3

24-CIV-07133

GRACE COLLEEN DODD, ET AL. VS. THE ENSIGN GROUP, INC., ET AL.

GRACE COLLEEN DODD
THE ENSIGN GROUP, INC.

LESLEY ANN CLEMENT
JOHN L SUPPLE

DEFENDANTS' MOTION FOR PROTECTIVE ORDER REGARDING PLAINTIFFS' NOTICE OF DEPOSITION OF THE ENSIGN GROUP, INC.'S PERSON MOST QUALIFIED RE: CHANGE OF OWNERSHIP AND REQUEST FOR PRODUCTION OF DOCUMENTS

TENTATIVE RULING:

Defendants The Ensign Group, Inc., Ensign Services, Inc., Flagstone Healthcare North LLC, and Mussel Rock Health Care Inc., d/b/a Pacifica Nursing & Rehabilitation Center (hereinafter Defendants) motion for a protective order related to plaintiffs' deposition of Defendants' Person Most Qualified (hereinafter PMQ) Re: Change of Ownership and Request for Production of Documents, pursuant to Code of Civil Procedure section 2025.420 is DENIED.

The instant motion is brought on the grounds that the PMQ deposition seeks testimony and documents on subject matters that are neither relevant nor reasonably calculated to lead to the discovery of admissible evidence and which significantly intrude upon Defendants' trade secrets. Moreover, there are far less intrusive means for plaintiffs to pursue and obtain the information and documents that they seek.

Plaintiff opposes the motion, contending that when defendants purchased Pacifica Nursing Center in 2023 and changed the business model the care provided to patients sharply declined because "Ensign looks for nursing homes where it can increase Medicare patients and impose its understaffing model to increase profits to its management staff, executive staff, and shareholders." (Opp. p. 3.) The deposition of the PMQ is directly relevant to Plaintiffs' elder abuse and corporate liability claims and defendant has failed to establish good cause for a protective order or substantiate its trade secret objections.

A. Legal Standard

For good cause shown, a court may order a protective order to limit the deposition of a party, deponent or other natural person or organization, including that trade secrets will not be disclosed. (Code Civ. Proc. § 2025.420.)

The court refers to the parties to its tentative ruling for the motion to compel for the background facts and the analysis. For the same reasons that the Court finds that the motion to compel is granted, the court denies the motion for protective order. The same limitations and deadlines stated in the motion to compel tentative ruling apply here.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. The order should be e-filed only, do not email or mail a hard copy to the Court.

2:00 PM

LINE 4

24-CLJ-01851

TD BANK USA, N.A VS. KATHREEN IRIS MAYE S. MENDOZA

TD BANK USA, N.A

KATHREEN IRIS MAYE S. MENDOZA

ALEXANDER BALZER CARR

PRO SE

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff TD Bank, N.A.’ motion for order that matters in request for admission of truth of facts be deemed admitted, set not 1 for failure to provide proper notice to defendant of the hearing.

In the notice of motion, plaintiff put the date of July 29, 2026 as the hearing date. Then the clerk’s office changed the hearing date to September 8, 2026. The court file shows a proof of service filed and served on June 5, 2026 of the motion. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

Since plaintiff states it is submitting on the papers without an appearance pursuant to California Rules of Court, rule 3.1304(c), plaintiff does not have an opportunity to show that proper notice was provided.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 5

25-CIV-06341

MOJTABA TAIEBAT VS. ANDREW G WATTERS

MOJTABA TAIEBAT
ANDREW G WATTERS

MICHAEL TSIVYAN
JERAMY STEPHEN STONE

MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFF MOJTABA TAIEBAT

CONTINUED FROM 6/23/2026

TENTATIVE RULING:

The court continued the hearing from June 23, 2026 until September 8, 2026 because of a pending August 4, 2026 demurrer and the potential prejudice to plaintiff, which was one of plaintiff's request.

The demurrer has been resolved and the only pending hearing is a case management conference on November 4, 2026. Thus, the court's concerns regarding prejudice to plaintiff no longer exist.

Although plaintiff raises other objections to the withdrawal of Tsivyan, the court cannot order an attorney to take certain litigation steps. These requests show a break-down of communication. The court finds good cause to grant the motion based upon Tsivyan's declaration and there is no prejudice to plaintiff.

Therefore the court GRANTS the motion of Michael Tsivyan to be relieved of counsel for plaintiff.

The withdrawal does not become effective until the filing of the proof of service of the signed order upon the client and all other notices.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action and plaintiff, as required by law and the California Rules of Court.

2:00 PM

LINE 6

25-CIV-09845

JEWISH LEGAL NEWS, INC. VS. CABRILLO UNIFIED SCHOOL DISTRICT, ET AL.

JEWISH LEGAL NEWS, INC.
CABRILLO UNIFIED SCHOOL DISTRICT

MARK L. JAVITCH
RICHARD W OSMAN

RESPONDENTS SOUTH SAN FRANCISCO UNIFIED SCHOOL DISTRICT AND LA HONDA-PESCADERO UNIFIED SCHOOL DISTRICT'S DEMURRER TO PETITIONER'S AMENDED VERIFIED PETITION FOR WRIT OF MANDATE FOR VIOLATIONS OF THE CALIFORNIA PUBLIC RECORDS ACT

TENTATIVE RULING:

On October 20, 2025, Petitioner submitted California Public Records Act (CPRA) requests to Respondents seeking the Ethnic Studies curriculum taught during the 2024–2026 school years—specifically, “all instructional materials, including classroom slides, assignments, handouts, resources, texts.” (Petition, Ex. A.)

The request specifically stated: “To minimize the burden of production, I am not asking for any documents to be produced, instead I am asking for a login to the existing software used to facilitate assignments, slides and homework electronically.” (Petition, Ex. A.)

The Petition alleges that Respondents did not produce the curriculum and did not provide access to the platforms where it is maintained. (Petition ¶¶ 40–41.)

Accordingly, Petitioner alleges that Respondents violated the CPRA (first cause of action) and seeks related declaratory and injunctive relief (second cause of action).

LEGAL ANALYSIS

1. The CPRA Does Not Require a Public Entity to Grant a Requesting Party Access to Its Computer Systems

Respondents' primary argument is that Petitioner's demand for login credentials for ongoing "observer access" to an educational software platform does not identify any specific record; it instead seeks an open-ended inspection regime over the entire system and all content within it. The CPRA does not require Respondent's to grant that request, and a petition demanding access to an entire software ecosystem, rather than copies of specific records extracted from it, seeks relief that falls entirely outside that statutory purpose of the CPRA. Respondents also argue that they only have the duty to produce non-exempt records, which determination is made prior to disclosure. Petitioner's request would result in the production of both exempt and non-exempt records.

Respondents' argument is supported by the statutory framework of the CPRA.

Under the CPRA, "each state or local agency, upon a request for a copy of records that reasonably describes an identifiable record or records, shall make the records promptly available to any person upon payment of fees covering direct costs of duplication." (Gov. Code § 7922.530.) Thus, the CPRA creates "a presumptive right of access to any record created or maintained by a public agency that relates in any way to the business of the public agency." (*Sander v. State Bar of California* (2013) 58 Cal.4th 300, 323.)

"Public records" are defined as "any writing containing information relating to the conduct of the public's business prepared, owned, used, or retained by any state or local agency regardless of physical form or characteristics." (Gov. Code, § 7920.530, subd. (a).)

Login credentials and access to the Respondents' computer programs and/or infrastructure are not "writings" containing information; they are a means by which the agency stores and manages its records. A demand for system access is therefore not a request for a public record within the meaning of the CPRA, even if Petitioner seeks to use such access to locate documents for which disclosure under the CPRA is appropriate. Further, the demand does not allow for the segregation or redaction of non-exempt records.

Further, the CPRA contemplates that the agency – *not the requester* – conducts the search for responsive records and then makes those records available:

[E]ach state or local agency, upon a request for a copy of records that reasonably describes an identifiable record or records, shall make the records promptly available to any person upon payment of fees covering direct costs of duplication, or a statutory fee if applicable.

(Gov. Code, § 7922.530, subd. (a).)

In *City of San Jose v. Superior Court* (2017) 2 Cal.5th 608, 627-629, the Supreme Court addressed processes that may be adopted by a public agency for conducting searches responsive to CPRA requests, including communicating the scope of the information requested to the custodians of its records or, if the request seeks records held in an employee's nongovernmental account, communicating the request to the employee in question, and training employees how to respond to records requests, how to prepare accompanying affidavits, and how to segregate their public records from personal records. There was no suggestion that a requestor may demand to conduct the search themselves by accessing agency systems.

Courts have consistently held that while the CPRA requires public agencies to provide access to their existing records, it does not require them to create new records to satisfy a request. (*See National Lawyers Guild v. City of Hayward* (2020) 9 Cal.5th 488, 502 [holding that agencies need not create records or "generate new substantive content to respond to a PRA request."]; *Sander v. Superior Court* (2018) 26 Cal.App.5th 651, 660 [holding that compelling an agency to undertake programming or data manipulation to restructure the substantive content of records goes far beyond CPRA's requirements].) "The basic rule is that an agency must comply with a

request if responsive records can be located with reasonable effort.” (*Sander v. Superior Court* (2018) 26 Cal.App.5th 651, 666.) Providing system access to a requestor so the requestor can conduct their own search would go far beyond this obligation

Petitioner provides no argument or authority supporting that Respondents are required to provide system access in response to Petitioner’s CPRA request.

Accordingly, as a matter of law, Respondents did not violate the CPRA by failing to provide Petitioner with “a login for existing software used to facilitate assignments, slides and homework electronically,” as specifically requested.

2. *Respondents Did Not Fail to Produce Documents Under the CPRA Because Petitioner’s Request Clearly Stated that It Was Not Asking for Document Production*

As noted above, Petitioner provides no argument or authority supporting that Respondents are required to provide system access in response to Petitioner’s CPRA request. Rather, Petitioner’s primary argument is that Respondent’s demurrer fails because it attacks only a portion of Petitioner’s first cause of action.

Petitioner explains that the first cause of action includes two alternative theories: (1) that Respondents refused observer access, and (2) in the alternative, Respondents failed to produce the records requested. Indeed, the Petition does allege this alternative theory:

Respondents unlawfully refused to provide access to the online platform where the curriculum is maintained, or in the alternative, failed to produce those records, despite the CPRA’s requirement to permit inspection in the format in which records are held.

(Petition, at ¶ 40.) Petitioner argues that Respondents violated the CPRA by failing to address the alternative, i.e. that they failed to produce the records requested, notwithstanding any denial of system access.

Under the doctrine of truthful pleading, a court may sustain a demurrer where the factually allegations in a pleading are inconsistent with a document attached to that pleading. As the Court of Appeal has explained:

As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Griffith v. Department of Public Works*, 141 Cal.App.2d 376, 296 P.2d 838.) The courts, however, will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. (*Alphonzo E. Bell Corp. v. Bell View Oil Syndicate*, 46 Cal.App.2d 684, 116 P.2d 786; *Chavez v. Times Mirror Company*, 185 Cal. 20, 195 P. 666.) Thus, a pleading valid on its face may nevertheless be

subject to demurrer when matters judicially noticed by the court render the complaint meritless.

(*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

“[T]he contents of any exhibits attached to the complaint . . . take precedence over and supersede any inconsistent or contrary allegations set out in the pleading.” (*Building Permit Consultants, Inc., v. Mazur* (2004) 122 Cal.App.4th 1400, 1409.)

Petitioner argues that “the alternative is pleaded in the operative Petition, which is the only document the demurrer tests.” (Opposition, 4:12-15.) However, under the truthful pleading doctrine, exhibits attached to a pleading are incorporated into the pleading and take precedence over inconsistent facts alleged in the pleading. (*Building Permit Consultants*, supra, 122 Cal.App.4th at 1409.) Petitioner’s CPRA request letter, attached to the Petition, explicitly requested only platform access: “***I am not asking for any documents to be produced, instead I am asking for a login to the existing software used to facilitate assignments, slides, and homework electronically.***” (Petition, Exhibit A, CPRA Request Letters [emphasis added].)

Respondents characterize Petitioner’s alternative records theory pleaded in the Petition as “post-hoc reframing.” (MPA, at p. 6.) Petitioner rejects that contention and explains that “[a] requester’s preferred form of production does not convert a valid request for identifiable records into an invalid one.” (Opposition, 4:18-19.)

The Court agrees with Respondents. Petitioner’s request for online access was not merely its “preferred form of production.” Rather, Petitioner expressly disclaimed a request for production and demanded only direct access to Respondents’ electronic systems: “I am not asking for any documents to be produced, instead I am asking for a login to the existing software used to facilitate assignments, slides, and homework electronically.” (Petition, Exhibit A, CPRA Request Letters) In no uncertain terms, Petitioner’s request was for system access, not for the production of records. Thus, Petitioner’s first cause of action, as pleaded in the alternative, seeks a remedy for Respondents’ alleged failure to fulfil a request that Petitioner did not in fact make.

Accordingly, as a matter of law, Respondent did not fail to timely produce records under the CPRA.

Respondents’ demurrer is SUSTAINED, without leave to amend. Although leave to amend is liberally allowed, such leave should not be granted where, in all probability as it appears to be in this case, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) Amendment appears to the court to be futile in this case based upon the request made. It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*Frayo v. Martin* (2024) 102 Cal.App.5th 1025, 1033.) Therefore, if plaintiff believes that it has facts sufficient to support amendment, Petitioner’s counsel shall properly contest the tentative ruling and provide those facts at the hearing. Absent that showing, the Court sustains the demurrer without leave to amend.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Respondents shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 7

25-CIV-09945

JOSEPH SIGUIG VS. WEHOPE

JOSEPH SIGUIG
WEHOPE

JASON M ERLICH

PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES (GENERAL AND EMPLOYMENT); REQUEST FOR SANCTIONS

TENTATIVE RULING:

Plaintiff Joseph Siquig's Motion to Compel Further Responses to Form Interrogatories (General and Employment) is ruled upon as follows:

On December 19 2025, Plaintiff filed his complaint. Thereafter on March 21, 2026, Plaintiff propounded Form Interrogatories (General), Set One, and Form Interrogatories (Employment), Set One. (Lacques Decl., ¶2, Exhs. 1, 2.)

Defendant WeHope, Inc. served its initial responses to both sets of Form Interrogatories on May 2, 2026. (*Id.*, at ¶3, Exhs. 3, 4.) The parties met and conferred by email regarding the discovery responses after Plaintiff determined that responses to General Form Interrogatories Nos. 4.1, 12.2, 12.3, 13.1, and 13.2 and Employment Form Interrogatories Nos. 200.4, 209.2, 211.1, and 214.1 were insufficient, and Defendant through counsel agreed to provide amended responses to only Employment Form Interrogatories Nos. 211.1 and 214.1 by May 19, 2026 and extend the deadline to file a motion to compel from the statutory deadline to July 8, 2026.. (*Id.*, at ¶¶3-8.) Defendant served supplemental responses on May 19, 2026. (*Id.*, at ¶10, Exh. 8.)

As an initial matter, the Court notes that defendant WeHope, Inc. has not yet filed a responsive pleading in the action. A plaintiff may propound interrogatories to a party without leave of court, however, at any time that is ten days after the service of the summons on, or appearance by, that party, whichever occurs first." (Code Civ. Proc., § 2030.020, subd. (b).) Plaintiff was therefore entitled to propound interrogatories, and the present Motion is authorized. Plaintiff filed a Proof of Service by substitute service of the amended Summons and Complaint on March 6, 2026, and Defendant has not moved to quash that service. Additionally, Defendant served initial and amended discovery responses to Plaintiff's propounded discovery which did not include objections to the court's jurisdiction and did include substantive responses. (Lacques Decl., ¶¶3, 10-11.) This participation in the merits of the action recognizes the court's authority and independently amounts to a general appearance. (See, e.g. *Roy v. Superior Court* (2005) 127 Cal.App.4th 337, 341, citing *Creed v. Schultz* (1983) 148 Cal.App.3d 733, 740.) The Court therefore has personal jurisdiction over Defendant WeHope, Inc.

Plaintiff's Reply brief references an Opposition, but that Opposition is not in the court file. Instead, on August 18, 2026, the court clerk rejected the filing because there had not been a first

appearance fee paid. However, defendant provided a courtesy copy to Department 4, which the court has reviewed.

Based upon the court's review of the pleadings, the court concludes that the parties have not had sufficient meet-and-confer regarding the discovery disputes. Defendant raises legitimate objections to the form interrogatories regarding the scope of the definitions. While generally, when a defendant thinks a term, like "incident" is vague and ambiguous or unintelligible, the proper procedure is to object and respond as best as the responding party can. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 ["Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response."].) However, in this case, it appears due to the number of potentially adverse actions, the scope of the interrogatories should have been worked out through meaningful meet-and-confer.

The court reminds the parties that, "The statute requires that there be a serious effort at negotiation and informal resolution. . . . Argument is not the same as informal negotiation; that attempting informal resolution means more than the mere attempt by the discovery proponent to persuade the objector of the error of his [or her] ways; and that a reasonable and good faith attempt at informal resolution entails something more than bickering with opposing counsel. Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294 (cleaned up); *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424.)

The court finds that the meet-and-confer in this case was insufficient. Simply sending meet-and-confer letters is not meaningful. Especially early in the case, as is the case here, counsel need to talk via Zoom or the telephone. Otherwise, the parties' default is simply to file motions to compel and request sanctions—here Plaintiff is seeking \$13,860.00 in sanctions for issues that should have been resolved during meaningful meet-and-confer.

Accordingly, the court defers ruling on the motion and orders the parties to have meet-and-confer in person or by Zoom by September 24, 2026 to see if they can resolve their differences. They shall email to Department 4 in a joint letter the result of their meet-and-confer, including any unresolved issues by October 1, 2026. If there are any unresolved issues then the parties shall personally appear for an informal discovery conference (IDC) with Judge Fineman on October 6, 2026 at 10:30 a.m. at the Hall of Justice, 400 County Center, Courtroom 4C, Redwood City, CA 94063. The parties shall meet-and-confer in person at the courthouse beginning at 9:00 a.m. on October 6, 2026 prior to the conference with Judge Fineman. If there are issues remaining after the IDC, the court will set a hearing date, allow supplemental briefing, and then the court will rule on this motion to compel.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 8

25-CLJ-07808

U.S. BANK NATIONAL ASSOCIATION VS GEOARTBONAL CORRAL

U.S. BANK NATIONAL ASSOCIATION
GEOARTBONAL CORRAL

DOUGLAS S WALLACE
JUSTIN REITER

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

TENTATIVE RULING:

Plaintiff U.S. Bank N.A.'s unopposed Motion for Summary Judgment or, in the Alternative, Summary Adjudication is DENIED WITHOUT PREJUDICE.

As a preliminary matter, the proofs of service of notice of the motion and its supporting papers is defective. Both proofs omit the name of the law firm that is part of Corral's counsel's address of record. (Feb. 24, 2026 Amended Notice of Motion, p. 2; Feb. 10, 2026 Notice of Motion, p. 2.)

Service by mail must be "addressed to the person on whom it is to be served, at the office address as last given by that person on any document filed in the cause and served on the party making service by mail[.]" (Code Civ. Proc., § 1013, subd. (a).) "Successful service by mail requires strict compliance with all statutory requirements, including those set forth in section 1013; the failure to comply deprives a court of jurisdiction to act." (*Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 509.)

Even minor technical defects such as omitting the law firm's name from the address render service by mail ineffective, as was the case in *Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362. There, because name of the attorney's law firm was listed in addition to the attorney's name on the party's prior court filings, "the correctly addressed envelope should have included the firm name." (*Triumph Precision Products, Inc.*, *supra*, at p. 365.) The service by mail was thus ineffective. (*Ibid.*) Such is the case here.

In addition and just as important, both notices contain incorrect locations for the hearing location. (See Amended Notice of Motion, p. 1; Notice of Motion, p. 1.) The first notice states that the motion will be heard by Department 2 in the Norther Courthouse in South San Francisco and the amended notice has the correct department, Department 4, but states that the hearing will be in the Central Courthouse in San Mateo. Department 4 is located at the Hall of Justice, 400 County Center, Courtroom 4C in Redwood City, California. (See (See Cal. Rules of Court, rule 3.1110 [the notice "must specify" the location of the hearing].)

A "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, because the proofs of service are defective and there is otherwise no

indication that Corral has received proper notice of the motion, the motion is denied without prejudice to a properly noticed and served renewed motion.

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM

LINE 9

26-CIV-02132

JESSICA CASTIGLIONE VS INTERNATIONAL BROTHERHOOD TEAMSTERS LOCAL 856

JESSICA FAWN CASTIGLIONE
INTERNATIONAL BROTHERHOOD TEAMSTERS LOCAL 856

LISA L. GYGAX
SUSAN GAREA

DEMURRER TO DEFENDANT TEAMSTERS LOCAL 856 TO COMPLAINT OF CASTIGLIONE

CONTINUED FROM 9/1/2026 due to request by plaintiff's counsel and agreed to by defense counsel. Plaintiff contests. The tentative ruling posted August 31, 2026 is reposted below.

TENTATIVE RULING:

This is a complaint for damages brought by Plaintiff Jessica Castiglione (plaintiff) in which she complains of "systemic illegal employment practices" committed by defendants International Brotherhood of Teamsters Local 856 (Local 856), International Brotherhood of Teamsters (IBT), Sean O'Brien, Fred Zuckerman, Chris Rosell, Peter Finch, Alex Topete, Wilver Arevalo, and Fuad Osman (collectively, Defendants). (Complaint, filed Mar. 23, 2026, ¶ 2.)

Local 856 now demurs to all seven causes of action in Plaintiff's complaint. (NODD, filed May 22, 2026.) Local 856 demurs to all claims on the grounds that it was never Plaintiff's employer and is therefore not a proper defendant to any of Plaintiff's causes of action. (*Id.* at p. 1:25-26.) Local 856 also demurs to each cause of action individually on separate grounds.

Legal Standards

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the cause of action therein. (Code Civ. Proc., § 430.50, subd. (a).) The defect must appear from the face of the pleadings or judicially noticeable facts. (*Blank v. Kirwant* (1985) 39 Cal.3d 311, 318.)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) And to be sustained, a "demurrer must dispose of an entire cause of action." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) "The

complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is construed liberally (see Code Civ. Proc., § 452), and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405).

Demurrer to all claims based on no alleged employment relationship

Local 856’s demurrer to all claims on the grounds that it is not a proper defendant is
OVERRULED.

“A complaint must contain ‘[a] statement of the facts constituting the cause of action, in ordinary and concise language.’ (Code Civ. Proc., § 425.10, subd. (a)(1).) This fact-pleading requirement requires the plaintiff to allege *ultimate* facts that apprise the defendant of the claim’s factual basis. (*Davaloo v. State Farm Ins. Co.* (2005) 135 Cal.App.4th 409, 415, 37 Cal.Rptr.3d 528.) Stated another way, the ‘complaint must allege the ultimate facts necessary to the statement of an actionable claim.’ (*Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1390, 272 Cal.Rptr. 387.)” (*Yalung v. State of California* (2023) 98 Cal.App.5th 71, 80, emphasis original.)

“ ‘Ultimate facts’ are those that raise the issues on which the *right to recover* depends—i.e., the essential elements of the cause of action. All the facts that are *material* to the cause of action—i.e., the facts that make a difference to the outcome of the case—must be alleged (see ¶ 6:400, 10:230, 10:271). [*Estes v. Eaton Corp.* (2020) 51 CA5th 636, 643, 265 CR3d 202, 208, fn. 2 (quoting text); *Foster v. Sexton* (2021) 61 CA5th 998, 1027, 276 CR3d 172, 197— ‘distinguishing “ultimate facts” from “evidentiary facts” and “legal conclusions” can be difficult’ (citing text); *Thomas v. Regents of Univ. of Calif.* (2023) 97 CA5th 587, 610-611, 315 CR3d 623, 641 (citing text)] [¶] By contrast, allegations of unnecessary detail and generalized argument may be objectionable as ‘evidentiary’ pleading and ‘legal conclusion,’ respectively.” (Weil & Brown, *Cal. Prac. Guide: Civ. Proc. Before Trial* (TRG June 2026 update) ¶ 6:124, emphasis original.)

“The distinction between ‘ultimate facts’ and ‘evidentiary’ matters is of diminishing importance because a complaint will be upheld if it provides the defendant with ‘notice of the issues sufficient to enable preparation of a defense.’ [*Doe v. City of Los Angeles* (2007) 42 C4th 531, 549-550, 67 CR3d 330, 344] [¶] Thus, plaintiff need only plead such facts as are necessary ‘to acquaint a defendant with the *nature, source and extent* of his claims.’ [*Doe v. City of Los Angeles*, *supra*, 42 C4th at 550, 67 CR3d at 344 (emphasis added); *Prue v. Brady Co./San Diego, Inc.* (2015) 242 CA4th 1367, 1376, 196 CR3d 68, 75— ‘a complaint is adequate so long as it apprises the defendant of the factual basis for the claim’]” (*Cal. Prac. Guide, supra*, at ¶ 6:128.)

Here, Plaintiff alleges that Local 856 was her employer (Complaint, ¶ 11); that Plaintiff’s work for Local 856 required her to travel and convince target employees to unionize their own workplaces (*Id.* at ¶ 13); that both IBT and Local 856 directed Field Organizers and ordered Field Organizers’ work schedule (*Id.* at ¶ 19); that Local 856 collected union dues and retirement fees

(*Ibid*); that both IBT and Local 856 supervised Plaintiff (*Id.* at ¶ 24); and that both IBT and Local 856 were responsible for adhering to requirements with respect to Plaintiff and aggrieved employees such as paying overtime, providing meal and rest breaks, etc. (*Id.* at ¶ 26.)

Plaintiff also alleges repeatedly that IBT and Local 856 “blur[red] the line as to who is the employer” (*Id.* at ¶¶ 13, 19, 24) and that the two entities “would never clearly answer plaintiff’s question of who her official employer actually was until after she was terminated.” (*Id.* at ¶ 25.) Plaintiff alleges that the two entities had “a unity of interest and goals along with of [sic] the orchestrated conduct between the two agencies is a conspiracy to control workers, deny rights,” etc., (*Id.* at ¶ 13) and that they “are both liable employers in the same manner as any temp agency contracting a worker, supervised by the work provider.” (*Id.* at ¶ 26.) Plaintiff includes numerous allegations in her individual causes of action referring to the violations committed by “Defendants.”

Plaintiff has alleged sufficient facts to establish an employment relationship in general. Her allegations go beyond a conclusory statement because she alleges that Local 856 directed her and ordered her work schedule, was responsible for her wage deductions, and supervised her. Additionally, Plaintiff notes in the Complaint and in her opposition that she believes IBT and Local 856 were acting in concert and that some information about her employment status was withheld from her which may be further revealed through discovery. These allegations are sufficient to withstand a general demurrer. (see *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446, 451.)

Local 856’s arguments on this issue focus on the definition of employment in the context of Labor Code violations. Under *Martinez v. Combs* (2010) 49 Cal.4th 35, 64, there are multiple definitions of employment: “To employ, then, under the IWC’s definition, has three alternative definitions. It means: (a) to exercise control over the wages, hours or working conditions, *or* (b) to suffer or permit to work, *or* (c) to engage, thereby creating a common law employment relationship.” Plaintiff has sufficiently alleged an employment relationship according to this definition based on the allegations described above.

First cause of action – Promissory Fraud

Local 856’s demurrer to the first cause of action is SUSTAINED, with leave to amend.

Local 856 raises two grounds for demurring to the first cause of action: ERISA preemption and failure to meet heightened pleading requirements. (MPA, p. 9:16-17.)

First, Local 856 argues that Plaintiff alleges damages based on loss of funds in the form of deductions for union dues and retirement contributions, but that litigation of retirement contributions is governed by ERISA and therefore preempted from state court litigation. (*Id.* at p. 9:18-20.) However, since a general demurrer cannot be brought to only a part of a cause of action (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948), this ground fails because it does not dispose of the entire cause of action. Plaintiff’s first cause of action alleges in

part that she was “originally led to believe she was joining and working for the LOCAL IBT union, made to pay dues but was excluded from the union membership she was forced to pay for and not protected from the very harms that the Teamster union protects employee members from.” (Complaint, ¶ 40.) Because the cause of action is premised on more than the pension plan claims, ERISA preemption cannot be grounds for sustaining the demurrer.

Second, Local 856 also argues that Plaintiff’s fraud allegations fail to meet the heightened pleading standards for a fraud claim. The law does require specificity in pleading fraud, but the heightened pleading standard for fraud “is relaxed when the allegations indicate that the defendant must necessarily possess full information concerning the facts of the controversy’ or ‘when the facts lie more in the knowledge of the opposite party” (*Tarmann v. State Farm Mutual Auto-Mobile Ins. Co.* (1992) 2 Cal.App.4th 153, 158 (cleaned up; *Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216–217.) However, even with a liberal reading of the complaint, it is deficient to plead fraud.

Local 856 it is not an individual who would be expected to know what he or she said, but a union. Plaintiff does not provide specificity about who made these representations although they were made directly to her. For example, Plaintiff alleges that during the intake process, she “was informed” she would be paying dues and would receive certain benefits including retirement benefits, and that “[b]ased on the statements of the IBT intake staff and that they were taking unions dues out of her paychecks,” Plaintiff believed she would be a union member. (Complaint, ¶¶ 9, 12.) Plaintiff fails to affirmatively allege that a staff member of either Local 856 or IBT or any other defendant made a statement with the intent to defraud Plaintiff or what that statement was.

With regard to the union dues in particular, Plaintiff does not allege that anyone told her she would be a union member or that she would receive particular benefits from paying union dues. She only alleges that she was told she would be paying dues, that those dues were taken out of her paycheck, and that she was not a union member. (See Complaint, ¶¶ 9, 12, 16, 21, 22, 28.)

With regard to the retirement benefits, Plaintiff does not allege that she was told she would receive retirement benefits which would vest immediately. She only alleges that she was told she would receive retirement benefits. Plaintiff later alleges that “Plaintiff was told . . . that the deductions for retirement would vest when they were made staff, a label they used but that a minuscule number of union organizers ever obtain.” (Complaint, ¶ 41.) It is unclear who Plaintiff is alleging “told” her this, but if she is referring to Local 856 or IBT, she has contradicted her earlier allegations.

National Labor Relations Act preemption

Local 856’s demurrers to the second cause of action for retaliation in violation of public policy, third cause of action for wrongful termination, and fourth cause of action for unfair competition are SUSTAINED, without leave to amend.

Although leave to amend is routinely granted, it is proper to deny amendment when the complaint shows on its face that it is incapable of being amended. *California Practice Guide: Civil Procedure Before Trial* §7:129.1 (TRG June 2026 update). If Plaintiff seeks leave to amend this cause of action, she should contest the tentative and appear at the hearing (via personal appearance or Zoom to provide facts that provide a reasonable possibility that he can state a cause of action.

Local 856 argues that these causes of action are preempted by the National Labor Relations Act (NLRA) and the Court agrees.

“The NLRA does not contain express preemption provisions, but the Supreme Court held that ‘two categories of state action are implicitly preempted: (1) laws that regulate conduct that is either protected or prohibited by the NLRA (*Garmon* preemption), and (2) laws that regulate in an area Congress intended to leave unregulated or “controlled by the free play of economic forces” (*Machinists* preemption).’ *Interpipe Contracting, Inc. v. Becerra*, 898 F.3d 879, 887 (9th Cir. 2018) (quoting *Chamber of Com. of the U.S. v. Brown*, 554 U.S. 60, 65, 128 S.Ct. 2408, 171 L.Ed.2d 264 (2008)).” (*Moreno v. UtiliQuest, LLC* (9th Cir. 2022) 29 F.4th 567, 573 (*Moreno*).)

Here, Local 856 asserts *Garmon* preemption based on the following section of the NLRA:

Employees shall have the right to self-organization, to form, join, or assist labor organizations, to bargain collectively through representatives of their own choosing, and to engage in other concerted activities for the purpose of collective bargaining or other mutual aid or protection, and shall also have the right to refrain from any or all of such activities except to the extent that such right may be affected by an agreement requiring membership in a labor organization as a condition of employment as authorized in section 158(a)(3) of this title.

(29 U.S.C. § 157.)

Plaintiff alleges as to her second cause of action that she was retaliated against for organizing Field and Staff Organizers to “work towards having Union representation and union membership and benefits” (Complaint, ¶ 54), for questioning the deduction of union dues without union membership (*Id.* at ¶ 57), for not voluntarily contributing to persons running for union office or to the Democratic Republican Independent Voter Education Fund (*Id.* at ¶ 58), and for “requesting that the LOCAL IBT and the parent company paying and directing their work follow California law and other concerns including wages, safety, proper meals when traveling, proper breaks, and other concerns.” (*Id.* at ¶ 60.)

Plaintiff alleges that “IBT staff managers expressed anger” in response to some of the above activities. (*Id.* at ¶¶ 57-58.) She also alleges that “[t]he retaliation consisted of less safe work assignments, longer work days, assignments off the clock, denial of vacation time, denial of equal days off, and threats that included being fired.” (*Id.* at ¶ 61.) She further alleges that “she was retaliated against with threats and eventually fired in retaliation for engaging in union organizing.” (*Id.* at ¶ 62.)

Plaintiff alleges as to her third cause of action that “Plaintiff sought representation for her and her cohorts on her own time,” and that she “complained about unsafe working conditions, and she complained about other problems and improper conduct, unequal pay, and or unlawful practices of the defendants and incidents.” (Complaint, ¶¶ 66-67.) She alleges that “[n]ot long after the unionizing vote ended . . . plaintiff was terminated.” (*Id.* at ¶ 68.)

Plaintiff alleges as to her fourth cause of action that IBT staff “told plaintiff that she violated policy so as to make her a pariah and prevent her from obtaining similar work at other unions.” (Complaint at ¶ 74.) Plaintiff also alleges that staff managers and supervisors told Plaintiff’s colleagues not to associate with her or they would face the same consequences, and others were told that Plaintiff and IBT had come to an agreement, such that Plaintiff was perceived as selfish. (*Id.* at ¶ 75.) Plaintiff alleges that these actions by Defendants violate BPC § 17200 “since it disadvantages other unions who compete in the workplace with the IBT.” (*Id.* at ¶ 77.)

Plaintiff’s second and third causes of action fall squarely within the National Labor Relations Board’s (NLRB) jurisdiction over the right to form labor organizations and to engage in concerted activities for the purpose of collective bargaining or other mutual aid or protection. Plaintiff’s allegations in the fourth cause of action are somewhat unclear but also appear to be based on Defendants having retaliated against Plaintiff for her organizing activities. Therefore, they also fall within the NLRB’s jurisdiction under 29 U.S.C. § 157.

As stated in *Moreno, supra*, 29 F.4th at p. 575: “Moreno’s central theory in his whistleblowing retaliation and wrongful termination claims is that he was terminated for advocating on behalf of his fellow employees after UtiliQuest refused to give them a promised raise. In *Bassette*, we held that an employee’s wrongful termination claim against her employer was preempted because the employer’s alleged conduct arguably violated the NLRA. 25 F.3d at 761. The same reasoning applies in this case because UtiliQuest’s conduct arguably violated the NLRA. Thus, there is clear potential for conflict between state law and federal policy.”

This finding is further supported Plaintiff’s allegations in her Complaint that “Plaintiff also made a complaint to the National Labor Relations Board. The process was feudal [sic] and the plaintiff on information and belief herein alleges that the IBT never settles with their own former Union Field Organizers.” (Complaint, ¶ 9.) Plaintiff also states that “Plaintiff has timely exhausted her administrative remedies and timey [sic] filed these causes of action and the plaintiff possesses a right to sue letter from the California Civil Rights Division and also an email from The National Labor Relations Board.” (*Id.* at ¶ 10.)

Moreno, supra, 29 F.4th at p. 576 states: “In determining whether adjudicating a state claim risks interference with the NLRB’s jurisdiction, we inquire whether ‘the controversy presented to the state court is identical with that which could be presented to the Board.’ *Belknap, Inc. v. Hale*, 463 U.S. 491, 510, 103 S.Ct. 3172, 77 L.Ed.2d 798 (1983). When controversies are identical, ‘a state court’s exercise of jurisdiction necessarily involves a risk of interference with the unfair labor practice jurisdiction of the Board.’ *Sears, Roebuck & Co.*, 436 U.S. at 197, 98 S.Ct. 1745. Importantly, the *claims* need not be identical, but rather the focus is on whether the ‘controversy

presented’ is identical. A finding of *Garmon* preemption does not require ‘that a plaintiff have a certain remedy before the Board, or even that the Board will hear the claim in the first place.’ *Bassette*, 25 F.3d at 759–60.”

Therefore, the demurrer to the second, third, and fourth cause of action by Local 856 is sustained.

Fifth cause of action - PAGA

Local 856’s demurrer to the fifth cause of action is SUSTAINED, with leave to amend.

Local 856 argues that Plaintiff’s PAGA (Private Attorney General Act) claim fails because Local 856 was not her employer. (MPA, p. 13:17-23.) As discussed above, the Court has found that Plaintiff adequately alleged an employment relationship with Local 856. Therefore, the demurrer fails on this ground.

Local 856 also argues that Plaintiff failed to plead that she met the requirements for filing a PAGA claim, specifically, giving notice to her employer and the Labor and Workforce Development Agency. (MPA at pp. 13:24-14:10; citing Lab. Code § 2699.3.)

Lastly, Local 856 argues that Plaintiff’s minimum wage, overtime, and meal and rest break claims fail because they are not alleged with sufficient particularity, and that the timely wage and wage statement claims fail because they are derivative. (MPA, p. 14:5-7.) Local 856 also argues that the claim for business expense reimbursement is not pled with any facts as to Local 856. (Id. at p. 14:7-8.)

Plaintiff has failed to allege compliance with Labor Code requirements for her PAGA claim and the demurrer is sustained on this ground. Labor Code section 2699.3 provides that “[t]he aggrieved employee or representative shall give written notice by online filing with the Labor and Workforce Development Agency and by certified mail to the employer of the specific provisions of this code alleged to have been violated, including the facts and theories to support the alleged violation.” Plaintiff does not state anywhere in her Complaint that she complied with this requirement. In her opposition, she appears to confuse the Labor and Workforce Development Agency with the California Civil Rights Division, a different agency because she states that she filed an administrative action asserting a PAGA claim with the California Civil Rights Division and received a right to sue letter. Plaintiff has not provided any authority that this is sufficient to comply with PAGA pre-filing requirements, nor does this Court believe there is authority to that effect. Labor Code section 2699.3 specifically requires notice to the Labor and Workforce Development Agency, which has a database with all PAGA cases filed.

Sixth cause of action – Equal Pay Violation

Local 856’s demurrer to this cause of action is SUSTAINED, with leave to amend.

Plaintiff alleges the following in support of her Equal Pay Violation cause of action:

-
- “The defendants promoted and paid men more than plaintiff who had less qualifications, some less experience, and less success. Plaintiff was directed by defendants to train and teach the IBT organizing method to some of these men.” (Complaint, ¶ 105);
 - “As a result of the advancement of men with less time on the job who were less successful as organizers, plaintiff suffered emotional stress, ageist, humiliation and extreme frustration by the gender-based pay discrimination.” (*Id.* at ¶ 106)

This is insufficient to allege the cause of action. Plaintiff does not allege a statutory basis for this claim. *Allen v. Staples, Inc.* (2022) 84 Cal. App. 5th 188, lays out the statutory scheme for California equal pay violations:

“Section 1197.5 is California's equal pay law. Its operative subsection states: ‘No employer shall pay any individual in the employer's employ at wage rates less than the rates paid to employees of the opposite sex in the same establishment for equal work on jobs the performance of which requires equal skill, effort, and responsibility, and which are performed under similar working conditions, except where the payment is made pursuant to a seniority system, a merit system, a system which measures earnings by quantity or quality of production, or a differential based on any bona fide factor other than sex.’ (§ 1197.5, subd. (a).)” (*Green v. Par Pools, Inc.* (2003) 111 Cal.App.4th 620, 622–623, 3 Cal.Rptr.3d 844.)

(*Allen*, 84 Cal.App.5th at pp. 193-194.) Plaintiff has failed to allege facts that the promotions were based on gender rather than any other potential factor or that the men who were promoted were performing substantially similar work to Plaintiff under substantially similar conditions.

Seventh cause of action – Sexual Harassment

Local 856’s demurrer to this cause of action is SUSTAINED, with leave to amend.

Plaintiff again fails to allege a statutory basis for this cause of action. Sexual harassment claims in California are governed by the Fair Employment and Housing Act (FEHA) but can be interpreted with reference to federal standards. (*Kelley v. The Conco Companies* (2011) 196 Cal.App.4th 191, 202, n. 7 (*Kelley*).) *Kelley* defined the elements of a state sexual harassment claim as follows:

FEHA’s “ ‘prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex.’ [Citation.]” (*Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 277, 42 Cal.Rptr.3d 2, 132 P.3d 211 (*Lyle*).) Claims of a hostile or abusive working environment due to sexual harassment arise when a workplace is “permeated with ‘discriminatory intimidation, ridicule, and insult[]’ [citation] that is ‘sufficiently severe or pervasive to alter the conditions of the

victim's employment and create an abusive working environment[]' [citation]...." (*Harris v. Forklift Systems, Inc.* (1993) 510 U.S. 17, 21, 114 S.Ct. 367, 126 L.Ed.2d 295.)

"The elements of such a cause of action are: '(1) plaintiff belongs to a protected group; (2) plaintiff was subject to unwelcome sexual harassment; (3) the harassment complained of was based on sex; (4) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (5) respondeat superior.' [Citation.]" (*Jones v. Department of Corrections & Rehabilitation* (2007) 152 Cal.App.4th 1367, 1377, 62 Cal.Rptr.3d 200.)

(*Kelley* at 202, footnotes omitted.) The U.S. Supreme Court held under 42 U.S.C. § 2000e *et seq.* that "[a]n employer is negligent with respect to sexual harassment if it knew or should have known about the conduct and failed to stop it." (*Burlington Indus., Inc. v. Ellerth* (1998) 524 U.S. 742, 759.)

Plaintiff has failed to meet the pleading standard of putting Local 856 on notice of the claims it must defend against. Plaintiff alleges harassment by "co-workers and supervisors," but then refers to "certain male workers," "the man," "all the male workers," and "the male worker." (See Complaint, ¶¶ 110, 111, 112, 116, 120.) The allegations appear to conflate several incidents of harassment and leave unclear who allegedly did what to Plaintiff. Plaintiff also alleges that "the employer" did not investigate or make a report about the alleged incidents, but it is unclear who "the employer" is. As found earlier in this ruling, Plaintiff properly alleged joint employer allegations against IBT and Local 856, so she must either do the same here or identify which of the two was responsible for this cause of action.

Plaintiff has ten (10) days from service of written notice of entry of order to file and serve a First Amended Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc. § 472b.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Local 856 shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

26-CIV-02490

MICHAEL SCOTT SHANNAHAN VS. JOHN ALEXANDER HALLEY

MICHAEL SCOTT SHANNAHAN
JOHN ALEXANDER HALLEY

JAMES L ARRASMITH
WALTER C COOK

DEFENDANT'S DEMURRER TO SECOND CAUSE OF ACTION OF PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

Defendant John Alexander Valley's ("Defendant") Demurrer to Second Cause of Action of Plaintiff Michael Scott Shannahan's ("Plaintiff") Complaint is **OVERRULED**.

This action arises from alleged legal malpractice. In October 2023, Plaintiff retained Defendant pursuant to a written fee agreement to represent him in an appeal arising from a DUI (driving under the influence) case in which Plaintiff was convicted ("San Mateo action"). The Complaint alleges that Defendant incorrectly advised Plaintiff that a stay of the suspension of his driver's license had been issued, which resulted in him being cited and another action filed against him in Alameda ("Alameda action"). Plaintiff also alleges Defendant filed a motion to set aside a default judgment against Plaintiff in the Alameda action using a factual theory that was false.

"Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another...may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (Code Civ. Proc., § 1060.)

The Second Cause of Action for Declaratory Relief alleges that an actual present controversy exists between Plaintiff and Defendant concerning their rights and obligations under the October 2023 fee agreement and Defendant's billing practices. (Complaint, ¶ 54.) Defendant used an hourly fee arrangement and accepted substantial funds from Plaintiff under a written retainer, and failed to provide bills clearly stating the amount, rate, basis for calculation or other method of determining attorney's fees and costs. (*Id.*, ¶ 56.) Plaintiff requested billing information and did not receive it as required by Business and Professions Code section 6148(b). (*Id.*, ¶ 57.) Plaintiff contends that Defendant's non-compliance with section 6148 renders the fee agreement voidable at Plaintiff's option, and Plaintiff elects to treat the agreement as voidable to the extent of Defendant's non-compliance. (*Id.*, ¶ 58.) As a result, Defendant may retain only reasonable fee and reimbursable costs that Defendant can substantiate. (*Id.*, ¶ 59.) Defendant disputes, or is likely to dispute, Plaintiff's right to treat the agreement as voidable, the right to adequate accountings and the right to recover funds retained by Defendant in excess of reasonable fee and

reimbursable costs. (*Id.*, ¶ 60.) Plaintiff seeks a judicial declaration of the parties' rights and duties including that Plaintiff has validly elected to treat the fee agreement as voidable and that Defendant may retain only such reasonable fee and reimbursable costs as Defendant proves. (*Id.*, ¶ 61.)

Business and Professions Code section 6148 states in relevant part:

...

(b) All bills rendered by an attorney to a client shall clearly state the basis thereof. Bills for the fee portion of the bill shall include the amount, rate, basis for calculation, or other method of determination of the attorney's fees and costs. Bills for the cost and expense portion of the bill shall clearly identify the costs and expenses incurred and the amount of the costs and expenses. Upon request by the client, the attorney shall provide a bill to the client no later than 10 days following the request unless the attorney has provided a bill to the client within 31 days prior to the request, in which case the attorney may provide a bill to the client no later than 31 days following the date the most recent bill was provided. The client is entitled to make similar requests at intervals of no less than 30 days following the initial request. In providing responses to client requests for billing information, the attorney may use billing data that is currently effective on the date of the request, or, if any fees or costs to that date cannot be accurately determined, they shall be described and estimated.

(c) Failure to comply with any provision of this section renders the agreement voidable at the option of the client, and the attorney shall, upon the agreement being voided, be entitled to collect a reasonable fee.

...

(Bus. & Prof. Code, § 6148, subds. (b)-(c).)

The fundamental basis of declaratory relief is the existence of an actual, present controversy over a proper subject. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 79.) The court may sustain a demurrer on the ground that the complaint fails to allege an actual or present controversy, or that it is not "justiciable." (*DeLaura v. Beckett* (2006) 137 Cal.App.4th 542, 545.)

Defendant claims that no actual controversy exists regarding the voidability of the fee agreement under section 6148 because Defendant's counsel and Defendant never disputed and concede Plaintiff's right to elect voidability under section 6148. (Cook Decl., ¶ 9.) However, a demurrer may be used only to challenge defects that appear on the face of the pleading under attack, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) No extrinsic evidence may be considered on a demurrer. (*Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds by *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287, 250.) The court

therefore does not consider this extrinsic evidence regarding Defendant's claimed concession for purposes of this Demurrer. Even if the court could consider extrinsic evidence, the court notes that no declaration has been provided by Defendant himself as to the claimed concession.

Furthermore, Plaintiff correctly points out that Business & Professions Code section 6148, subdivision (c), provides for the attorney to collect a reasonable fee. As such, this cause of action also seeks a declaration as to what is a reasonable fee, if any. Even if the court could consider the declaration in ruling on the Demurrer (which it does not), Defendant does not appear to concede that he is not entitled to any payment of fees.

The court finds that Plaintiff alleges facts sufficient to support this declaratory relief claim.

Defendant is to file and serve an answer within ten days of service of written notice of entry of order by Plaintiff.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 11

26-CIV-02953

JOHN ROE VS. GENENTECH, INC

JOHN ROE
GENENTECH, INCJAMES A. DAL BON

PLAINTIFF'S MOTION FOR LEAVE TO PROCEED UNDER PSEUDONYM

TENTATIVE RULING:

Plaintiff's request for leave to proceed under a pseudonym is DENIED. Plaintiff's request to file medical or other information under seal is DENIED without prejudice to bring a motion to seal when those documents are filed in this court for a motion or trial (discovery motions have different rules about confidential information).

In this case, plaintiff sues defendant alleging in substance that it improperly rescinded an employment offer because of his criminal conviction. He has presented no evidence that his conviction has been expunged and sealed. It appears undisputed that defendants discovered his criminal convictions when defendant performed a routine background check, which implies that the conviction is a matter of public record.

Public access to court proceedings is paramount. (Code Civ. Proc., § 124; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1197 (*NBC Subsidiary*).) “[O]pen trials serve to demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings [citation]; ‘[m]ore importantly,’ open trials provide a means, ‘akin in purpose to the other checks and balances that infuse our system of government,’ by which citizens scrutinize and ‘check’ the use and possible abuse of judicial power [citation]; and finally, ‘with some limitations’ [citation], open trials serve to enhance the truth-finding function of the proceeding [citation].” (*NBC Subsidiary*, at pp. 1201–1202, quoting Justice Brennan's concurring opinion in *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555 [public access to criminal trial]; see *NBC Subsidiary*, at p. 1211 [concluding same principles apply to civil trials].) “ ‘Popular attendance at trials, in sum, substantially furthers the particular public purposes of that critical judicial proceeding. In that sense, public access is an indispensable element of the trial process itself....’ [Citation.]” (*NBC Subsidiary*, at p. 1202.) Court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).)

Public access, however, is not absolute. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1217.) Certain types of information are confidential and the public is not entitled to access that information. (See e.g. *Overstock.com, Inc. v. Goldman Sachs Grp., Inc.* (2014) 231 Cal.App.4th 471, 503.) To balance the competing policies, in order to prohibit the public from seeing certain documents in the court filed, the Court must expressly find:

- (1) There exists an overriding interest of the third party's right to privacy that overcomes the right of public access to the records;
- (2) The overriding interest supports sealing the records;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550.)

When individuals employ the public powers of state courts to accomplish private ends, they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed therein will be open to public inspection. Part of the right to access means "the right to know the identity of the parties." (*Roe v. Smith* (2025) 116 Cal.App.5th 227, 237–238 [cleaned up].) Thus, in *Roe v. Smith*, a defamation action involving allegations of sexual misconduct which the court agreed was a sensitive and private matter, after a detailed analysis of the case law and policies for and against allowing a party to proceed under a pseudonym, the court found that the conclusory allegations of reputational and economic harm were insufficient to support an overriding interest to protect plaintiffs from harm in the futures. Thus, the court held that plaintiffs could not proceed under pseudonyms.

This court, as it must, in applying *Roe v. Smith* finds after weighing all the evidence and the competing policies of protecting private and/or sensitive information, the right of public access, and the probability that the public interest would be prejudiced if the court allows plaintiff to proceed under a pseudonym finds that: plaintiff has some slight interest in having this information protected but it is greatly outweighed by the right of public access and the prejudice suffered if the motion was granted. Based upon the evidence, plaintiff's conviction is a matter of public record because defendant was able to find it through a background search. It is more likely that future employers would discover the information through a background search than scouring the court files. His concerns about how future employers and others might act are not based on any evidence but mere conjecture. As the parties point out, the law not governs how employers may treat criminal convictions. Additionally, unlike the background check, even if the case is discovered, the court file will contain plaintiff's explanation of why the conviction should not have been a disabling factor. Plaintiff knew when he filed suit that court records are open to inspection. Against plaintiff's interest is the public interest in access to court files, including the names of litigants, and the long-standing law limiting those who can proceed under a pseudonym. The court finds the public would be prejudiced if plaintiff is allowed to proceed under a pseudonym.

The court denies without prejudice plaintiff's request for the sealing of documents. As the law requires, the court must consider each request under the standards of California Rules of Court, rule 2.550. The court cannot make a forward looking ruling on documents which are not specifically identified and are not related to a specific motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 12

26-CIV-06641

SANJIV S. DHAWAN, AS TRUSTEE OF THE SANJIV SHARAN DHAWAN AND SHILPA
DHAWAN JOINT LIVING TRUST VS. CALIFORNIA TD SPECIALIST, ET AL.

SANJIV S. DHAWAN, AS TRUSTEE OF THE SANJIV SHARAN DHAWAN AND SARAH SHAPERO
SHILPA DHAWAN JOINT LIVING TRUST
CALIFORNIA TD SPECIALIST

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION

TENTATIVE RULING:

For the reasons stated below, Plaintiff Sanjiv Dhawan (as Trustee)'s request for a preliminary injunction, made via *ex parte* application on August 25, 2026, is DENIED.

Background. Plaintiff Sanjiv Dhawan (in his capacity as Trustee) owns real property in Menlo Park that is in default under a loan, secured by a deed of trust. This property is not his residence, but an investment property. Plaintiff's loan has an unpaid balance of over \$3.7 million, plus accruing interest, fees, and costs. (Cmplt., ¶ 6; Dhawan Decl., ¶ 2.)

After the property was initially scheduled for a foreclosure sale, Plaintiff apparently obtained an initial 45-day postponement of the sale by presenting defendant MAMS RTL Trust (Defendant), who is specially appearing to oppose this motion, with a listing agreement, as allowed under Civil Code section 2924f, subdivision (e)(1), indicating that the property would be publicly listed for sale. It appears that the sale was then postponed to August 11, 2026. Shortly before that date, Plaintiff presented Defendant with a California Residential Purchase Agreement (PSA), indicating that an agreement had been reached to sell the property to The Suri Family Living Trust (Sunil Suri, Trustee). The Purchase Agreement identified a purchase price of about \$5.15 million, 80% of which would be financed. The buyer was required to pay, within five days of acceptance, \$103,000, and a \$1,130,000 total downpayment.

Having presented Defendant with the Purchase Agreement, Plaintiff requested another 45-day extension of the sale pursuant to Civil Code section 2924f, subdivisions (e)(3)-(4), which mandates another 45-day extension where the foreclosure trustee is presented with a "*bona fide*," fully executed sales contract. To determine whether the Purchase Agreement was genuine (i.e., whether the proposed sale was actually going forward), Defendant requested evidence from Plaintiff (and from escrow) that the buyer had met the initial contractual requirement of paying the \$103,000 deposit. Plaintiff could not provide such evidence, because it had not been paid. Plaintiff argued, however, that Civil Code section 2924f, subdivision (e)(3) does not expressly require payment of a deposit.

A trustee's sale was apparently re-scheduled for August 26, 2026. On August 25, 2026, one day before the scheduled sale, Plaintiff, through his counsel, Sarah Shapero, appeared *ex parte*

seeking a temporary restraining order and a preliminary injunction enjoining the sale, on grounds that Plaintiff had entered into a contract to sell the property, and therefore (according to Plaintiff) was automatically entitled to the additional 45-day extension under Civil Code 2924f, subdivision (e)(3). Plaintiff's *ex parte* application argued that under Civil Code section 2924f, subdivision (e)(3), since Plaintiff provided the foreclosure trustee with a fully executed purchase agreement, the Defendant trustee had no choice but to grant an additional 45-day continuance of the sale.

According to the agreements in the signed Purchase Agreement, the buyer's \$103,000 deposit was due within 5 days after acceptance, which occurred on either August 10 or 11, 2026. Thus the deposit was due either August 13 or 14, 2026. As of the August 25, 2026 *ex parte* hearing, Plaintiff admitted that no deposit had been made. Defendant opposed the *ex parte* application, arguing that under Civil Code section 2924f, subdivision (e)(3)-(4), to obtain the additional 45-day extension, Plaintiff must present evidence of a "bona fide" sales contract, and since the buyer never paid the deposit, Plaintiff has not satisfied the "bona fide" contract requirement.

At the August 25, 2026 *ex parte* hearing, the Court set a hearing on plaintiff's request for a preliminary injunction for September 8, 2026. The parties agreed that no foreclosure sale would proceed before September 9, 2026.

Plaintiff seeks a preliminary injunction barring any trustee's sale until after September 25, 2026, which is 45 days after the trustee was presented with the Purchase Agreement.

Legal standard governing preliminary injunctions. A preliminary injunction is an extraordinary equitable remedy that requires a showing of great or irreparable harm. (*Costa Mesa City Employees' Assn. v. City of Costa Mesa* (2012) 209 Cal.App.4th 298, 306; *Dep't of Fish & Game v. Anderson-Cottonwood Irrigation Dist.* (1992) 8 Cal.App.4th 1554, 1565.) If that showing is made, the court must then consider the likelihood that the moving party will ultimately prevail on the merits and the relative harm to the parties from issuance or non-issuance of the injunction. (*Id.*) The purpose of a preliminary injunction is to preserve the status quo until a determination on the merits. (*Id.*) The court's determination must be guided by a "mix" of the potential-merit and interim-harm factors; the greater plaintiff's showing on one, the less must be shown on the other to support an injunction. (*Butt v. State of Calif.* (1992) 4 Cal.4th 668, 678.) But the trial court may not issue an injunction, regardless of the amount of interim harm, "unless there is some possibility" that plaintiff will ultimately prevail on the merits of the claim(s). (*Jamison v. Department of Transp.* (2016) 4 Cal.App.5th 356, 362.)

"Plaintiff carries the burden of proof and persuasion on these issues." (*Drakes Bay Oyster Co. v. California Coastal Com.* (2016) 4 Cal.App.5th 1165, 1172 [citing *O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481]; Code Civ. Proc., § 527, subd. (a).) The court recognizes that plaintiff needs only show that he is "likely to prevail" however plaintiff must still support his argument(s) with admissible evidence to sustain his burden. (Code Civ. Proc. § 527 subd. (a); see also *Finnie v. Town of Tiburon* (1988) 199 Cal.App.3d 1, 14–15 ["...while the injunction may rest upon either a verified complaint or affidavits, the law is settled that the allegations of either must be factual; conclusory averments in either are insufficient to support issuance of an

injunction.”].)The burden of establishing entitlement to preliminary injunctive relief rests with the moving party.

Based the evidence presented, Plaintiff has not established a sufficient likelihood of prevailing on his claim for a statutory postponement of the trustee’s sale. Civil Code section 2924f states, in part:

(e)(1) With respect to residential real property containing no more than four dwelling units that is subject to a power of sale contained in any deed of trust or mortgage, a sale of the property under the power of sale shall not be conducted until the expiration of an additional 45 days following the scheduled date of sale pursuant to subdivision (a) or (c) of Section 2924g if the trustee receives, at least five business days before the scheduled date of sale, from the mortgagor or trustor, ... *a listing agreement with a California licensed real estate broker to be placed in a publicly available marketing platform for the sale of the property* at least five business days before the scheduled date of sale. The provisions of this paragraph shall not be used to postpone the scheduled sale date more than once.

...

(3) If a scheduled date of sale has been postponed pursuant to paragraph (1) and the trustee receives, at least five business days before the scheduled date of sale, from the mortgagor or trustor, ... a copy of a purchase agreement for the sale of the property at least five business days before the scheduled sale, the trustee shall postpone the scheduled date of sale to a date that is at least 45 days after the date on which the purchase agreement was received by the trustee. The provisions of this paragraph shall not be used to postpone the scheduled sale date more than once.

(4) For purposes of this subdivision, “purchase agreement” means a *bona fide* and fully executed contract for the sale of the property that is subject to a power of sale with a purchase price amount equal to or greater than the amount of the unpaid balance of all obligations of record secured by the property that includes the name of the buyer, the sales price, the agreed closing date, and acceptance by the designated escrow agent.

(Emphasis added.)

Plaintiff offers evidence that on August 10 or 11, 2026, Plaintiff provided Defendant with an executed Purchase Agreement that included the name of the buyer (The Suri Family Living Trust), the sales price (about \$5.15 million), the agreed closing date (45 days after acceptance), and acceptance by the designated escrow agent (Nesi Title & Escrow Company). (See Aug. 25, 2026 Plaintiff’s Declaration and attached exhibits.) By its terms, the buyer’s \$103,000 was due by Aug. 13 or 14, 2026. As of August 25, 2026, the date of Plaintiff’s *ex parte* application, Plaintiff admitted that no deposit had been made. The September 8, 2026 hearing is taking place nearly a month after the buyer’s deadline to deposit the \$103,000 has come and gone. Plaintiff’s *ex parte* application offered no explanation from either the Plaintiff or the purported buyer as to

why the deposit was not paid. The buyer did not appear at the August 25, 2026 *ex parte* hearing, and has not provided any declaration pertaining to this matter.

Plaintiff argues that once Plaintiff presents the trustee with a signed Purchase Agreement, under Civil Code section 2924f, subsection (e)(3), Defendant must then delay the sale for another 45 days. But this argument essentially reads the “*bona fide* [contract]” requirement out of the statute. The word “*bona fide*” is an express statutory qualification. The Defendant here has reasonably requested evidence showing that the buyer is actually committed to the transaction. It is reasonable for a trustee, under these circumstances, to be cautious of a defaulting owner presenting the trustee with what appears to be a paper contract for the sole purpose of obtaining a further delay under Civil Code section 2924f, subdivision (e)(3). Plaintiff has not established with admissible evidence that this purported sale is actually going forward.

The best evidence that the purported sale is actually going forward would presumably be payment of the deposit, accompanied by an explanation from the buyer as to why they missed the deadline. Not only was the deposit never paid, but there is silence from the purported buyer. During the course of a sale, there are communications between sellers and buyers, either directly or indirectly. Thus, given that the buyer may lose a property to foreclosure, one would expect an explanation of why the buyer missed the deposit payment deadline by nearly a month and offer any explanation. If the buyer intended to proceed with the purchase, presumably, the court would have before it a signed declaration from the buyer explaining its failure to pay the deposit, attaching evidence showing the buyer’s financial ability to complete the transaction, and stating when all the funds will be deposited and when escrow will close. That the buyer has nothing to say here is compelling evidence that this purported transaction is not going forward. So too is it compelling that Plaintiff has failed to provide any evidence that the transaction will go forward.

Plaintiff is correct that Civil Code section 2924f, subdivision (e)(3) does not expressly require payment of a deposit. But the Purchase Agreement expressly does, and it was not paid. The deposit requirement is a built-in, contractual milestone intended to demonstrate the buyer’s commitment. Because it was not paid, the court has before it no competent evidence that the transaction is *bona fide*.

The Ludwig declaration filed with the Opposition papers states that on August 28, 2026 (three days after the August 25 *ex parte* hearing), Plaintiff’s counsel emailed Mr. Ludwig (counsel for Defendant), stating that Plaintiff’s counsel had learned somehow that the buyer allegedly had a family emergency after opening the escrow, and has travelled to India, thus explaining the buyer’s failure to pay the deposit. (Ludwig Decl., ¶ 10.) Plaintiff’s counsel’s email also stated, however, that apparently, a recent title report shows two outstanding liens on the property, which apparently gave the buyer cold feet and caused the buyer to shy away from the transaction. (*Id.*)

If anything, Plaintiff’s counsel’s August 28, 2025 email provides further support for the court’s conclusion that Plaintiff has not met his burden. First, there is no competent evidence of the facts stated in Plaintiff’s counsel’s August 28 email. Plaintiff’s counsel has no personal knowledge of any of those statements/facts, all of which appear to constitute double-hearsay. And even if those

facts are true, they suggest that the buyer has, in fact, backed out of the transaction, which would be further indication that there is no bona fide sale actually going forward.

Accordingly, Plaintiff appears unlikely to establish an entitlement to the 45-day extension under Civil Code section 2924f, subdivision (e)(3)-(4).

Defendant's Opposition papers also offer evidence that Plaintiff never actually marketed or publicly listed the property for sale, despite having provided a listing agreement. For example, Plaintiff offers no MLS printout, broker declaration, showing or offer history, photographs, or other evidence that the Property was actively marketed to the public. (Ludwig Decl., ¶ 3.) Defendant argues that this failure to publicly list the property for sale constitutes further evidence that the Purchase Agreement is not "bona fide." The court agrees that this omission is further evidence suggesting that there is not a bona fide offer.

Plaintiff has not established that the balance of interim harms warrants injunctive relief.

Plaintiff's asserted harm must be considered in light of the evidentiary record of the purported sales transaction. As explained, Plaintiff offers scant evidence that the purported sales contract here is genuine/bona fide. Plaintiff argues that he seeks only a relative short delay in the sale (another 45 days), and that the balance of hardships favors Plaintiff because without injunctive relief, he would lose his property. But that argument could be made for every borrower in default. If every defaulting borrower could obtain an automatic 45-day additional delay under Civil Code section 2924f, subdivisions (e)(3)-(4) merely by presenting a signed sales contract, despite the existence of evidence that the buyer actually has no intention of proceeding with the purchase, it would effectively deny all lenders of their contractual and statutory foreclosure rights. Moreover the property is not plaintiff's home but an investment property. The court therefore concludes that the balance of interim harms does not weigh sufficiently in Plaintiff's favor to warrant preliminary injunctive relief.

Conclusion. For the foregoing reasons, Plaintiff's request for a preliminary injunction is DENIED.

Since Plaintiff did not have the opportunity to file a reply because of the short briefing schedule required for this motion, if Plaintiff has evidence to demonstrate that there is a bona fide offer, Plaintiff shall properly contest the tentative rulings, file, serve and email Department 4 by 11:00 a.m. on September 8, 2026 that evidence (in admissible form). Plaintiff may also file, serve and email Department 4 a reply brief by the same deadline or may argue orally at the hearing. If Plaintiff intends to offer any new legal authority, that legal authority shall be emailed to Department 4 and all parties by the same deadline. The court will not consider evidence at the hearing, absent good cause, unless it has been emailed by the deadline.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for specially appearing defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 13

26-UDL-00049 EQUITY RESIDENTIAL MANAGEMENT LLC VS. LIDUVINA DEL PILAR CANTILLO, ET AL.

EQUITY RESIDENTIAL MANAGEMENT LLC
LIDUVINA DEL PILAR CANTILLO

KIYOSHI DIN

PLAINTIFF'S MOTION FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION

TENTATIVE RULING:

The court GRANTS Equity Residential Management unopposed motion for entry of judgment pursuant to stipulation. The request for judicial notice is granted. The unopposed motion is granted pursuant to Code of Civil Procedure section 664.6.

The parties settled this action wherein defendant agreed to pay plaintiff \$13,830.49 as principal plus \$2,000 in attorney's fees and court costs for a total of \$15,830.49 as the "Balance." It further provides that defendant shall make payments of \$2,322.05 on April 15, 2026, and April 30, 2026. The parties also agreed that the court would retain jurisdiction to enforce the settlement agreement.

The declaration of Karen Webster states that defendants did not make the April 2026 payments. Accordingly, the defendant is in breach, and under the settlement agreement, plaintiff is entitled to a judgment of \$15,830.49.

According, the dismissal of this action is vacated, and judgment is entered for plaintiff and against defendant Juan Camilo Romero Moissl in the amount of \$15,830.49.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order and proposed judgment consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
